

Savitha vs Sri. M. Manjunath on 9 January, 2023

Bench: Alok Aradhe, S Vishwajith Shetty

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 9TH DAY OF JANUARY 2023

PRESENT

THE HON'BLE MR. JUSTICE ALOK ARADHE

AND

THE HON'BLE MR. JUSTICE S.VISHWAJITH SHETTY

M.F.A. NO.1016/2014 (FC)

C/W

M.F.A.CROB.NO.17/2015 (FC)

IN M.F.A.NO.1016/2014:

BETWEEN:

SAVITHA

W/O M. MANJUNATH

AGED ABOUT 28 YEARS

R/AT REDDANNAHALLI VILLAGE

UGANAVADI POST, KUNDANA HOBLI

DEVANAHALLI TALUK

BANGALORE RURAL.

...APPELLANT

(BY SRI SPOORTHY HEGADE NAGARAJA, ADV.,)

AND:

SRI M. MANJUNATH

S/O K. MUNIYAPPA

AGED ABOUT 33 YEARS

R/AT NO.776, OPP, VENKTARAMANA

SWAMY TEMPLE STREET

DOMLUR LAYOUT, BANGALORE.

...RESPONDENT

(BY SRI M.T. JAGAN MOHAN, ADV.,)

THIS MFA IS FILED U/S 19 (1) OF FAMILY COURTS ACT,
PRAYING AGAINST THE JUDGMENT AND DECREE DATED:

07.02.2013 PASSED IN M.C.NO.539/2007 ON THE FILE OF

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THE PRINCIPAL JUDGE, FAMILY COURT, BANGALORE,
DISMISSING THE PETITION FILED U/S 13(1)(ia) & (ib) OF THE

HINDU MARRIAGE ACT, FOR DIVORCE.

IN M.F.A. CROB.NO.17/2015:

BETWEEN:

SRI M. MANJUNATH
S/O K. MUNIYAPPA
AGED ABOUT 33 YEARS
R/AT NO.776, OPP, VENKTARAMANA
SWAMY TEMPLE STREET
DOMLUR LAYOUT, BANGALORE. . .CROSS OBJECTOR

(BY SRI M.T. JAGAN MOHAN, ADV.,)

AND:

SAVITHA
W/O M. MANJUNATH
AGED ABOUT 28 YEARS
R/AT REDDANNAHALLI VILLAGE
UGANAVADI POST, KUNDANA HOBLI
DEVANAHALLI TALUK
BANGALORE RURAL. . .RESPONDENT

(BY SRI SPOORTHY HEGADE NAGARAJA, ADV.,)

THIS MFA CROB. IS FILED U/S 19 (1) OF FAMILY
COURTS ACT, 1984 R/W ORDER 41, RULE 22 OF CPC,
PRAYING AGAINST THE JUDGMENT AND DECREE DATED :
07.02.2013 PASSED IN M.C. NO.539/2007 ON THE FILE OF
THE PRINCIPAL JUDGE, FAMILY COURT, BENGALURU,
DISMISSING THE PETITION FILED U/SEC 13(1)(ia) AND (ib)
OF THE HINDU MARRIAGE ACT.

THESE APPEAL & CROB. COMING ON FOR HEARING
THIS DAY, VISHWAJITH SHETTY J., DELIVERED THE
FOLLOWING:

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JUDGMENT

The above captioned Miscellaneous First Appeal and Cross Objection arise from the judgment and decree dated 07.02.2013 passed in M.C.No.539/2007 by the Family Court, Bengaluru.

2. Heard the learned counsel for the parties and also perused the material available on record.

3. Brief facts as revealed from the records that may be relevant for the purpose of disposal of this appeal and cross objection are, the marriage of appellant-wife with the respondent-husband was

solemnized on 10.02.2006. The couple lived together as husband and wife only for a short period. Thereafter, it appears that the relationship between the parties got strained and therefore, the appellant-wife had left the company of the respondent-husband and started residing in her parents house at Devanahalli Taluk, Bengaluru Rural District. The respondent had therefore filed a petition under Section 13(1)(i-a) & (i-b) of the Hindu Marriage Act, 1955 (hereinafter referred to as the "Act of 1955" for short) in M.C.No.539/2007 on 07.03.2007 with a prayer for dissolution of marriage. In the said proceedings, the appellant was placed ex-parte and the Family Court vide judgment and decree dated 01.08.2008 had allowed the petition. Thereafter, on 28.10.2009, the respondent had remarried. Subsequently, the appellant had filed Miscellaneous Petition before the Family Court with a prayer for setting aside the ex-parte judgment and decree passed in M.C.No.539/2007. The said Miscellaneous Petition was allowed and the ex-parte judgment and decree passed in M.C.No.539/2007 was set-aside. Thereafter, the appellant had filed her statement of objections before the Family Court. The appellant had also made a counterclaim under Section 9 of the Act of 1955 for restitution of conjugal rights. The Family Court by its judgment and decree 07.02.2013 had dismissed the petition filed under Section 13(1)(i-a) & (i-

b) of the Act of 1955 and also the counter claim. Being aggrieved by the dismissal of counterclaim, the appellant-wife had filed MFA No.1016/2014 while aggrieved by the dismissal of petition under Section 13(1)(i-a) & (i-b) of the Act of 1955 the respondent- husband has filed MFA Crob.No.17/2015.

4. Learned counsel for the appellant-wife submits that the Family Court was not justified in dismissing the counterclaim. He submits that the Family Court having dismissed the petition under Section 13(1)(i-a) & (i-b) of the Act of 1955 filed by the respondent on the ground that he had failed to prove the ground of cruelty and desertion alleged against the wife ought to have allowed the petition filed by the wife under Section 9 of the Act of 1955. He however does not dispute the fact that after the Family Court had passed the ex-parte judgment in M.C.No.539/2007, the respondent-husband has remarried and from the second marriage he has a girl child.

5. Learned counsel for the respondent-husband submits that parties are residing separately for the last 15 years and after the marriage, the appellant-wife had resided with the respondent-husband only for a short period and from the second marriage, the respondent has got a girl child and therefore, at this point of time, it would not be possible for the parties to stay together. He submits that the respondent -husband is ready and willing to pay permanent alimony to the appellant-wife and accordingly, he prays to allow the petition filed by him before the Family Court seeking divorce and reject the counterclaim made by his wife.

6. Undisputably, after the Family Court had passed the ex-parte judgment against the appellant-wife in M.C.No.539/2007, the respondent-husband had remarried on 28.10.2009 and from the said wedlock a girl child is born. It is also not in dispute the parties are residing separately for the last more than 15 years and they have no issue from this wedlock. Under the circumstances, we are of the considered view that the prayer made by the appellant-wife for restitution of conjugal rights cannot be granted at this stage and the only point that arises for consideration in this appeal would be the amount of permanent alimony to be granted to the appellant-wife. The learned counsel for

the appellant-wife has also submitted that since the respondent has now remarried, he would be satisfied if a reasonable amount of permanent alimony, be granted to his party.

7. The respondent has filed an affidavit with regard to his assets and liabilities and has stated that his income is Rs.15,000/- per month. Additionally, he has also stated that he owns 3 floored building jointly with his brother, at K.R. Puram, Bengaluru. Learned counsel for respondent during the course of his submission has also admitted that the respondent owns a flour mill. Though the respondent has stated in his affidavit that his monthly income is only Rs.15,000/-, the same cannot be believed in view of rent agreement which has been produced by him along with affidavit. The rent agreement produced by him would go to show that he has taken a premises for residence and he is paying monthly rent of Rs.20,000/- for the same. The material on record would also go to show that the appellant has sold a joint family property in the year 2010 for a sale consideration of Rs.10,89,410/-. The mother of the respondent had executed a release deed in favour of the respondent and his brother in respect of the three floored property situated at K.R.Puram and therefore, as on this date it is only the respondent and his brother who have got right and title in respect of the said property.

8. The respondent has also stated in his affidavit that he is ready and willing to pay a sum of Rs.5 lakhs to the appellant-wife towards permanent alimony, if the matter is settled. The appellant-wife has taken shelter in her parents house at Devanahalli and there is nothing on record to show that she has got any independent source of income. In her affidavit of assets and liabilities, she has stated that except the monthly amount of Rs.2,500/- awarded to her under Section 125 of Cr.P.C., she has no other income. She has also stated that the respondent has not been paying the same regularly. Taking into consideration the overall material available on record, the present cost of living and also the fact that the appellant-wife has no independent source of income, we are of the considered view that if an amount of Rs.15 lakhs is awarded to her as permanent alimony, the same would meet ends of justice. Further, we have already held that since the respondent had remarried after the Family Court had passed the ex-parte judgment of divorce it would not be possible to ask the parties to stay together and since we have now awarded permanent alimony to the appellant, a decree of divorce dissolving the marriage between the parties is bound to follow. Under the circumstances, relief sought for by the respondent in his cross objection is required to be granted. Accordingly, the following:-

ORDER M.F.A.No.1016/2014 filed by the appellant-wife is dismissed.

M.F.A.Crob.No.17/2015 filed by the respondent-husband is allowed. Consequently, the marriage of the parties that was solemnized on 10.02.2006 is dissolved by a decree of divorce.

The respondent-husband is directed to pay a sum of Rs.15,00,000/- (Rupees Fifteen Lakhs) to the appellant-wife as a permanent alimony within a period of four months from the date of receipt of certified copy of this order, failing which the said amount will carry 6% interest till the date of payment.

Sd/-

JUDGE Sd/-

JUDGE NMS